

Bylaws of Network Theory Applied Research Institute, Inc.

Clean-room draft of 2026-08-28, derived from the Janus Facing Architecture — the official document, the dispute-mechanics design, the concept triage, and the open-questions record. Written without consulting any prior bylaws. Not adopted.

Preamble

The Janus Facing Architecture assigns this organization a precise seat: the protocol tier of the Governance layer — a nonprofit, copyleft software stewardship organization. Its members are the architecture's Governance orchestrator; these bylaws are the Governance frontend, the rules by which those members coordinate, synchronously and asynchronously. Everything in this instrument exists to perform that seat. Where the architecture demands something of the governance layer, these bylaws supply it; where the architecture is silent, these bylaws stay lean.

Article I — The Corporation

1.1 Name and identity. The corporation is Network Theory Applied Research Institute, Inc. ("NTARI" or "the Institute"), a nonprofit corporation with its principal office in Louisville, Kentucky, holding federal employer identification number 92-3047136.

1.2 Authorities referenced. The Institute is incorporated under the Kentucky nonprofit corporation law, KRS Chapter 273, and is recognized as exempt under section 501(c)(3) of the Internal Revenue Code. The articles of incorporation carry the provisions those authorities require. These bylaws restate none of that language; they are read subject to the articles and to those authorities, and where these bylaws conflict with either, the articles and the authorities control.

1.3 Registered office and agent. The Institute maintains the registered office and registered agent that KRS Chapter 273 requires. Their current identities are those on file with the Kentucky Secretary of State and are not restated here.

1.4 Purpose. The Institute exists to steward the Janus Facing Architecture and the commons built on it:

- (a) to hold, maintain, and amend the official document of the Janus Facing Architecture and its executable conformance suite;
- (b) to steward JFA software as a free software commons under copyleft terms;
- (c) to conduct and publish research on network systems, deliberative infrastructure, and endogenous economics; and
- (d) to educate the public in the same.

1.5 Defined instruments. In these bylaws, "the official document" means janus-facing-architecture.md as stewarded by the Institute; "the twelve lines" means the section of the official document titled "The Lines That Cannot Be Crossed"; "the conformance suite" means the executable suite and invariant registry that verify the official document; "the dispute-mechanics design" means the design recorded in jfa-dispute-mechanics.md.

Article II — Principles

These principles are operative rules of interpretation. Every other provision of these bylaws is read to serve them.

2.1 Shared Responsibility. The community that coordinates is the same community that checks the coordination. The two functions are exchanged continuously among the members and are never split into rulers and ruled. No organ created by these bylaws may become a body that only decides and is never answerable.

2.2 Institutional Discipline. Each layer of the architecture — and each organ of this Institute — is disciplined by the cost of leaving it. Where leaving is cheap, competition disciplines and these bylaws impose no gate. Where leaving is dear, the members vote. Where leaving is impossible, the decision stays open to challenge. Any provision of these bylaws that creates a power must name its check; a power whose check cannot be identified is void until the membership supplies one.

2.3 No decision permanently closed. No decision of the membership is permanently closed. Any member may bring a decided matter back before the body under §6.7.

2.4 The privacy floor in governance. The shared record of the architecture carries no narratives and no identities — hashes, types, timestamps, and references only. The Institute's own public proceedings honor the same floor: filings, ballots, and published records of proceedings identify parties by reference, never by personal information beyond what the proceeding itself requires.

2.5 Append-only governance record. The Institute forgives by annotating, never by erasing. Minutes, ballots, recognitions, publications, and decisions of record are corrected by annotation; no record of a governance act is deleted or rewritten.

2.6 Lean instrument. These bylaws stay small enough to be read whole. An obligation that can live in the official document, a platform covenant, or an operator's published rules does not belong here.

Article III — Membership

3.1 The single standard. Membership in the Institute is obtained by operating a federated instance of JFA software. There is no other path. Membership is earned by operation; it is never bought, and the Institute charges no dues for it.

3.2 Federated instance. An instance is federated when all of the following are true:

- (a) it speaks the shared protocol and federates with at least one other independently operated instance;
- (b) it maintains at least two independent witnesses — an instance with fewer must label itself unfederated and does not qualify;
- (c) it commits its hashes to the public chain distributed across the substrate;
- (d) its source, including modifications, is published as its copyleft license requires; and

(e) its operation does not cross any of the twelve lines.

3.3 Recognition. Membership begins upon recognition by the office of the Secretary. Recognition is ministerial, not discretionary: the Secretary verifies §3.2 from the public chain and the published record and records the recognition in the governance registry (§9.5). A refusal to recognize must state which condition of §3.2 failed and is challengeable through Article XII.

3.4 One member, one vote. Each member holds one vote, regardless of how many instances, platforms, or layers it operates. Governance weight, like credit, is never bought.

3.5 Members are operators. A member is the person or entity responsible for the operation of its instance. Membership carries the duties of Article X for every platform economy the member hosts.

3.6 Lapse. Membership lapses when the member's last federated instance ceases to satisfy §3.2 and is not restored within ninety days. Lapse is recorded by annotation, with its kind — ceased, lapsed, or expelled — and is not an erasure of the member's history. A lapsed member is readmitted by the same recognition path as a new member, except where Article XII governs.

3.7 Continuous exchange of roles. Every member is simultaneously a coordinator of the network and a checker of its coordination. No class of membership may be created whose function is only one of the two.

Article IV — Prosumer Standing

4.1 Rights that never require membership. The architecture grants standing to prosumers directly, and nothing in these bylaws conditions those rights on membership in the Institute. Without being a member, a prosumer may:

- (a) verify any commitment on the public chain against content and salt held in their own records;
- (b) file a dispute as a record holder of an exchange, and rate an adjudicator's conduct, as the dispute-mechanics design provides;
- (c) appeal a trust suspension or contest an expulsion referral through the procedure of Article XII; and
- (d) address the appropriate Federation Channel in any proceeding that concerns them.

4.2 Voice, not franchise. Prosumer standing is voice and process, not vote. The franchise belongs to members under Article III.

4.3 The Institute serves the standing. The offices and organs of the Institute are obligated to receive, docket, and process prosumer filings on equal terms with member filings.

Article V — Federation Channels and Circles

5.1 Federation Channels. The Institute maintains one Federation Channel for each layer of the architecture: Substrate, Record, Covenant, Governance, and Economy & Information. Each member belongs to the channel of every layer it operates. A channel is where the members of a layer troubleshoot, coordinate security, evolve the shared protocol, and conduct the layer's governance business.

5.2 The appropriate channel. Where these bylaws direct a matter to "the appropriate Federation Channel," that is the channel of the layer in which the matter arose; where a matter spans layers, the Governance channel is appropriate.

5.3 Circles. A circle is an open working body of the Institute. Any member may join any circle. Each circle elects one delegate. A delegate is recallable at any time by vote of the circle that elected them, without cause and with immediate effect.

5.4 Officer circles. Each officer of the Institute maintains a circle. The officer's circle is the body through which the membership continuously checks that office: it observes the office's work, and its delegate acts for the office where these bylaws so provide, including §12.4(d).

5.5 Channel and circle records. Channels and circles keep append-only records of their proceedings under §2.5, honoring the privacy floor of §2.4.

5.6 Venues. The Institute's coordination venues — the software in which channels, circles, and assemblies meet — must be leaveable: the governance record must be exportable whole, and no venue may become a host whose removal could stop the Institute's coordination. A proprietary venue may be used only as a named interim with a committed exit.

Article VI — Assemblies and Decisions

6.1 Coordination, synchronous and asynchronous. The membership acts in synchronous assembly or by asynchronous ballot. The two have equal force.

6.2 Annual assembly. The membership assembles at least once each year to receive the reports of the officers and the Board, elect directors and officers, and take up the business of the Institute.

6.3 Special assemblies and ballots. A special assembly or ballot is called by the Board, by the President, or by petition of one-tenth of the members.

6.4 Notice and window. Notice of any assembly or ballot states the matter to be decided and is published to the appropriate Federation Channel at least one week before the vote closes. The default voting window for an asynchronous ballot is one week.

6.5 Quorum and majority. An assembly or ballot is valid when at least one-quarter of the members participate. Except where these bylaws require more, a matter is decided by a majority of votes cast.

6.6 Open proceedings. Assemblies and ballots are open to observation by prosumers and the public, subject to the privacy floor of §2.4.

6.7 Reopening a decided matter. Any member may, by filing in the appropriate Federation Channel, bring any decided matter back before the body; the filing states what decision is challenged and what outcome is sought, and the matter enters the next assembly or ballot. If the body reaffirms its decision without change, the same member may not reopen the same matter for ninety days; any other member may.

6.8 Elections and recall. Directors and officers are elected by the membership. Any director or officer is recallable at any time by majority of votes cast in a ballot called under §6.3. Recall requires no cause; the

ballot is the cause.

Article VII — Board of Directors

7.1 Delegates, not principals. The directors are recallable delegates of the membership. The Board conducts the affairs of the Institute between assemblies; it does not hold what Article XV reserves to the members.

7.2 Composition and term. The Board consists of no fewer than three and no more than seven directors, the number fixed by the membership. Directors are elected at the annual assembly for one-year terms and serve until their successors are elected. There are no term limits; the recall of §6.8 is the discipline.

7.3 Vacancies. The Board may fill a vacancy until the next assembly or ballot, at which the membership fills it.

7.4 Action. The Board acts in meetings, synchronous or asynchronous, on one week's notice to its members, a majority constituting a quorum and a majority of those present deciding. Board proceedings are open to observation by members, and their records are kept under §2.5.

7.5 Reserved powers. The Board may not amend these bylaws, amend the official document, expel any party, dispose of the Institute's stewardship of the official document or the conformance suite, or dissolve the Institute. Those powers belong to the membership alone.

7.6 No gate not named. The Board may not insert itself as an approval step in any process these bylaws or the official document define without it — including recognition under §3.3 and stage changes under Article XI.

Article VIII — Officers

8.1 The offices. The officers of the Institute are a President, a Vice President, a Secretary, and a Treasurer. Officers are elected by the membership at the annual assembly for one-year terms and are recallable under §6.8. Each officer maintains a circle under §5.4.

8.2 President. The President chairs assemblies, represents the Institute externally, and may call special assemblies and ballots.

8.3 Vice President. The office of the Vice President is the Institute's venue for appeals, readmission, and re-entry under Article XII. The Vice President maintains the circle and the delegate that Article XII requires, and otherwise acts for the President in the President's absence.

8.4 Secretary. The Secretary keeps the governance record, performs the ministerial recognition of members under §3.3, maintains the governance registry of §9.5, receives and records the publications of Article XI, and issues the notices these bylaws require.

8.5 Treasurer. The Treasurer keeps the accounts of the Institute, reports them to each annual assembly, and files what the authorities referenced in §1.2 require to be filed.

8.6 The Institute's money is not the network's money. The Institute's own funds are ordinary funds held and disbursed in the exogenous currency of its accounts. The Institute issues no currency, holds no community's credit, and is never a counterparty, custodian, or clearer in any exchange on the architecture.

Article IX — Stewardship of the Architecture

9.1 What the Institute stewards. The Institute stewards the official document, the conformance suite and its invariant registry, the concept triage record, and the living open-questions document. The companion structure article describes the architecture and never governs it.

9.2 Amending the official document. The official document is amended only by two-thirds of votes cast by the membership. An amendment is not adopted until the conformance suite passes against the amended text. A concept retired by the triage record stays retired unless the same act that reintroduces it amends the triage record and says so.

9.3 The open-questions obligation. The Institute keeps its open-questions document current. A question raised in governance and not resolved is entered; a stale open-questions document means the project has stopped describing itself honestly, and any member may raise staleness as business in the Governance channel.

9.4 Licensing floor. JFA software stewarded by the Institute is licensed under the GNU Affero General Public License; the specification, under Creative Commons Attribution–ShareAlike. The Institute never relicenses either into proprietary terms, accepts contributions only under terms consistent with this floor, and signs no agreement that would let any party — including the Institute — close what is open.

9.5 The governance registry. The Secretary maintains a public, append-only governance registry recording: recognitions and lapses of membership; the publications of Article XI; expulsions, readmissions, and re-entries under Article XII; and each amendment of the official document and of these bylaws. The registry honors §2.4.

9.6 Conformance and the name. The Institute recognizes a claim of conformance only where executable tests cite the invariant registry's IDs; every other claim it names self-attested. A build that crosses any of the twelve lines is not a smaller JFA; the Institute does not recognize it, federate with it, or count its operation toward membership.

Article X — Operator Duties

10.1 Economic management. Responsibility for managing each platform's economy and information exchange rests on its operator. As a condition of membership, each member, for every platform economy it hosts, shall:

- (a) run the platform's ledger;
- (b) adjudicate covenant breaches between its own prosumers, as the dispute-mechanics design provides;
- (c) execute the remedies an adjudication yields;

(d) annotate defaults on the record by kind — deceased, departed, or adjudicated — never erasing them;

(e) set the community-wide credit limit: one number for everyone, never set per member, and never derived from reputation; and

(f) publish the platform's trailing default rate — dead credit created over a recent rolling window as a share of trade volume — at a cadence the operator states in advance.

10.2 Adjudication is rated. Whoever adjudicates — operator or witness — is rated on their conduct by both prosumers involved, and the ratings are displayed as the count of outcomes at each rating level, never as one number.

10.3 Dispute windows. Where an Economy & Information category protocol is silent on its dispute window, the operator's published platform rules set the default window.

10.4 Failure of duties. Persistent failure of the duties of §10.1 is a covenant matter first — adjudicated, rated, and disciplined by the market's cheap exit — and a membership matter only where it amounts to loss of a §3.2 condition or grounds for referral under §12.2.

10.5 No institutional routing. The Institute does not supervise, ratify, or pre-clear operators' economic management. The checks are the architecture's own: filings that land on the public chain the moment they are made, public adjudication reputation, published limits and default rates, and prosumers' freedom to leave.

Article XI — Stage Changes

11.1 The gate. A deployment begins in escrow — collateralized, no negative balances, no trust extended — and switches to a hybrid or full mutual credit system only after: the operator has built the capacity to manage the stage it is entering; the deployment's prosumer network has been notified; and a completed regulatory review has been published to the governance layer.

11.2 Publication is the act. Publication of the completed regulatory review to the governance registry is itself the operative act. Neither the Board nor the membership approves a stage change, and no organ of the Institute may make itself a gate over one. The Secretary records receipt ministerially and without judgment on sufficiency.

11.3 Notification. The prosumer network is notified when the operator gives notice to the prosumers of the deployment and posts the same notice in the Economy & Information Federation Channel, no less than thirty days before the switch takes effect.

11.4 Challenge, not approval. Any member, or any prosumer of the deployment, may challenge whether the conditions of §11.1 were in fact met, through the procedure of Article XII. The challenge is the check; there is no prior restraint.

11.5 The hybrid stage. In a hybrid deployment, escrow and mutual credit operate across the same system and each prosumer decides which they accept, as the companion article describes.

Article XII — Discipline, Expulsion, Readmission, and Appeals

12.1 What only governance may do. Operators and witnesses never expel; only governance does. Annotation and restitution are final when adjudicated — the adjudicator's public rating is the check. Trust suspension and expulsion referral are appealable, once, to the Institute as the governance venue.

12.2 Expulsion referrals. An adjudicator's referral of expulsion is filed with the office of the Vice President and docketed in the appropriate Federation Channel. After a one-week period for the record — during which both parties and any record holder of the underlying exchange may address the channel subject to §2.4 — the members decide the expulsion by majority of votes cast in that channel's ballot. Expulsion is recorded by annotation in the governance registry.

12.3 What expulsion reaches. Expulsion severs membership and the franchise. It does not erase history; the expelled party's record stands, annotated. It does not reach what the architecture guarantees: positions and history survive any frontend, and a community's records survive any operator.

12.4 The appeal and readmission procedure. An appeal of a trust suspension, a challenge under §11.4, a petition for readmission after suspension, or a petition for re-entry by an expelled or banned operator proceeds as follows:

- (a) **Submission.** The petition is submitted to the office of the Vice President. It contains no personally identifying information; parties and exchanges are cited by reference and hash.
- (b) **Rating period.** The office docketed the petition in the appropriate Federation Channel for a one-week rating period.
- (c) **Ratings.** Each member of the Vice President's circle may cast one rating on the offense, on the covenant's assessment scale, whose lowest rating is -1.
- (d) **Decision.** If the mode of the ratings cast is -1, the petition is denied and readmission is barred. If no ratings are cast, the Vice President's delegate decides the petition. Otherwise the petition is granted.
- (e) **Resubmission.** A denied petitioner may resubmit after a one-week cooldown.
- (f) **Same path for operators.** A banned or expelled operator re-enters by this same path; upon a granted petition, recognition under §3.3 proceeds on its ordinary ministerial terms.

12.5 One appeal. Each suspension or referral carries one appeal. The outcome of the appeal is final, subject only to §2.3's reopening by the membership and to resubmission under §12.4(e).

Article XIII — Self-Binding of the Institute

13.1 No chokepoint. The Institute may not hold, own, or operate any single host, account, key, or vendor relationship whose removal could stop the network. Anything the Institute holds must be replaceable without the network noticing.

13.2 The record survives the steward. The official document and the software are licensed such that they survive the Institute; the public chain, the per-party records, and the exportable governance record survive it likewise. No act of the Board or the membership may impair a license already granted or a record already committed.

13.3 Succession. If the Institute dissolves, the membership designates a successor steward for the official document, the conformance suite, and the governance registry before dissolution completes; assets are distributed as the articles of incorporation and the authorities referenced in §1.2 require. Dissolution of the Institute is an event in the governance layer, not in the network: no deployment, currency, record, or exchange depends on the Institute's existence.

Article XIV — Corporate Administration

14.1 Fiscal year. The fiscal year is the calendar year.

14.2 Books and records. The Institute keeps the books and records that KRS Chapter 273 and its federal recognition require, alongside the governance registry of §9.5. Members may inspect the Institute's records on reasonable notice.

14.3 Conflicts of interest. Every director, officer, and delegate discloses any interest they hold in a matter before acting on it, and abstains where the interest conflicts. The Board maintains a conflict-of-interest policy consistent with the Institute's federal recognition; disclosures are recorded under §2.5.

14.4 Compensation discipline. Directors serve without compensation for board service. The Institute may compensate staff and contractors reasonably for services rendered, subject to the authorities referenced in §1.2. Witnessing, record service, and other substrate work compensated inside a platform's economy is the platform's affair, not the Institute's payroll.

14.5 Indemnification. The Institute indemnifies its directors, officers, and delegates to the extent KRS Chapter 273 permits and its federal recognition allows, and may purchase insurance for the purpose.

14.6 Nondiscrimination. Membership recognition, prosumer standing, and every procedure of these bylaws are administered without discrimination; the single standard of §3.1 and the conditions of §3.2 are the only tests of membership.

Article XV — Amendment

15.1 By the membership alone. These bylaws are amended only by two-thirds of votes cast by the membership in an assembly or ballot noticed under §6.4, the notice carrying the full text of the amendment.

15.2 Subordination. No amendment may cross the twelve lines, override the official document, or delete the checks that §2.2 requires each power to carry.

15.3 Open to challenge. An adopted amendment, like any decision, remains open under §2.3.

Article XVI — Transition

16.1 Bootstrap. Until at least three members hold recognition under §3.3, the Board of Directors exercises the powers of the membership, except that it may not amend the official document or dispose of the Institute's stewardship. Each act taken under this authority is recorded in the governance registry as a

bootstrap act.

16.2 End of bootstrap. When three members hold recognition, the Secretary notices the first assembly of the membership within sixty days. At that assembly the membership elects directors and officers, and this article's authority ends. Bootstrap acts remain valid but stand open to the membership under §2.3 like any other decision.

Appendix — Provenance of Demands

Informative, not operative. Each structural demand these bylaws answer, and its source in the JFA corpus.

Bylaws provision	Demand	Source
Preamble, §1.4	Nonprofit copyleft stewardship org is the Governance protocol tier	Official document, Governance layer
§3.1	Membership obtained by operating a federated instance	Official document, Governance orchestrator tier
§3.2(b)	Two-witness minimum; "unfederated" label below it	Official document, Record layer (REC-witness-minimum)
§2.1	Shared Responsibility	Official document, Principles
§2.2	Institutional Discipline (cost of leaving)	Official document, Principles
§2.3, §6.7	No decision permanently closed	Concept triage, 2026-08-24 resolutions; bylaws-level per 2026-08-27 revision
§2.4, §12.4(a)	Privacy floor; no PII in filings	Official document, line 7 (L7); open questions entry 7
§2.5, §10.1(d)	Append-only; forgive by annotation	Official document, line 6 (L6)
§5.3, §7.1	Open circles electing recallable delegates	Concept triage, carried (bylaws-level per 2026-08-27 revision)
§5.1	Members organized by the layer(s) they operate	Structure article, "Between Federations"
§10.1	Operator economic-management duties	Dispute-mechanics design §1 (bylaws-level per 2026-08-27 revision)
§10.1(e)	Community-wide limit, one number, never from reputation	Official document, line 9 (L9)
§10.2	Adjudicators rated; distribution display, never one number	Dispute-mechanics design §§1, 3; official document, line 8 (L8)
§10.3	Operator default dispute window	Dispute-mechanics design §2
Art. XI	Escrow start; capacity, notice, regulatory review published to governance layer	Official document, line 10 (L10)
§11.5	Hybrid stage definition by reference only	Open questions entry 5 (EI-hybrid retired to companion article)
§12.1	Only governance expels; suspension/referral appealable once	Dispute-mechanics design §4
§12.2 (cross-platform context)	Cross-platform disputes at the witness layer	Dispute-mechanics design §3 (COV-witness-adjudication)

Bylaws provision	Demand	Source
§12.4	VP venue, one-week channel rating, circle one-rating-each, mode -1 bars, delegate decides on silence, one-week cooldown, same path for banned operators	Open questions entry 7
§13.1	No single point whose removal stops the network	Official document, line 11 (L11)
§13.2, §12.3	Positions and records survive frontends, operators — and the steward	Official document, line 12 (L12)
§9.4	AGPL software, CC BY-SA specification, copyleft commons	Official document, Introduction and footer
§9.3	Living open-questions document	Concept triage, carried (meta)
§9.6	Conformance recognized only with registry-citing tests; else self-attested	Structure article, "Legibility, mechanized"; dispute-mechanics design §7
§2.6	Lean instrument	Official document, Principles (lean, auditable code, applied to governance)

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